

25STCV26296 25STCV26296

County: los-angeles

Division: Civil Law and Motion

Department: 10

Hearing date: 2026-07-14

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for counsel to address the following:

Defendants have not appeared and not defaulted and thus are not yet subject to the Court's jurisdiction. Due to the Court's fiduciary duty to the prospective settlement class members, it must have effective jurisdiction over the settling defendants. For this reason, each of them must file a Notice of Appearance (or Answer) and pay the required fees.

Assure the

Settlement Agreement and Notice are consistent and that the Settlement Agreement (including revised versions) has been signed by all parties and counsel. Carefully proofread both. Counsel for the parties failed to execute the Settlement as to form. Further, the settlement (while text searchable in its re-filed version), is very difficult to read. The Settlement looks like it was printed when Counsel's ink cartridge was low, and then scanned, making it difficult to read and review.

Class

Certification: Community of Interest: Discuss specific facts showing that the proposed class representatives have claims or defenses typical of the class and can adequately represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.) Typicality and adequacy were not discussed in the moving papers.

Why is it

proper for funds from uncashed PAGA payments to be directed to a cy pres instead of the State Controller's Office? (See ¶4.4.3)

The named

Plaintiff is not receiving an incentive award herein. Counsel is to

confirm there does not exist a separate agreement between Plaintiff and Defendant.

The

Settlement Agreement and paperwork derivative thereof should not suggest that the end result of court approval will be dismissal of the Action with prejudice or entry of a Final Judgment and Order dismissing with prejudice all claims. See California Rules of Court, rule 3.769(h). Remove ¶10.6 from the Settlement Agreement accordingly.

Scope of
the Release:

The

Releases in ¶6.3 are overbroad. Aggrieved Employees should not release claims “arising out of, or reasonably related to, the Released Class Claims”. Rather, Aggrieved Employees should only release claims for PAGA Penalties actually alleged in the PAGA Notice and Operative PAGA Complaint or those which could have been alleged based on the facts and claims actually alleged in the PAGA Notice and Operative PAGA Complaint. Revise accordingly.

The

Releases in ¶6.3 are overbroad. Aggrieved Employees should only release claims for PAGA penalties which were alleged in BOTH the “Operative PAGA Complaint and PAGA Notice” not “Operative PAGA Complaint or PAGA Notice”. Revise ¶6.3 and the Notice accordingly.

The

Releases in ¶¶6.2-6.3 need to be revised to make it clear that they only take effect upon the full funding of the Settlement, and not the Effective date. Revise accordingly.

Explain

how notice of final judgment will be given to the class. (Cal. Rules of Court, rule 3.771(b)) (e.g. Posted on administrator’s website.)

The Notice

incorrectly states the final approval hearing is in dept. 7. Revise accordingly.

If the

Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties and counsel. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms. Modify notice to match any alterations to the Settlement Agreement.

If you need a continuance to respond to these issues, call the courtroom and we will cooperate.